

Summary report: Litera Compare for Word 11.7.0.54 Document comparison done on 8/1/2025 7:33:01 PM	
Style name: DLA Standard	
Intelligent Table Comparison: Active	
Original filename: Tender NDA (MRPL) 2025(50732825.2) - Ontra R1.20250731.docx	
Modified filename: Tender NDA (MRPL) 2025(50732825.2) - Ontra R1.20250731 - DLA comments.docx	
Changes:	
Add	19
Delete	13
Move From	0
Move To	0
Table Insert	0
Table Delete	0
Table moves to	0
Table moves from	0
Embedded Graphics (Visio, ChemDraw, Images etc.)	0
Embedded Excel	0
Format changes	4
Total Changes:	36

STRICTLY PRIVATE AND CONFIDENTIAL

From:

MCD Real Properties Limited as the registered owner of the Properties (as defined below) in the Transaction (as defined below))

(being the "**Disclosing Party**")

To:

Name of Intending Tenderer: The Blackstone Group (HK) Limited

Address: Suite 901, Two International Finance Centre, 8 Finance Street, Central, Hong Kong

Date: _____ 2025

Dear Sir/Madam,

The Disclosing Party is engaged in a possible transaction with you relating to the public tender of the properties described in the Schedule (the "**Properties**") (the "**Transaction**"). In the course of your consideration of the Transaction, the Disclosing Party may directly or through their respective agent or advisers provide you or your Representatives (as defined below) with Confidential Information.

For the purpose of this Letter, "**Confidential Information**" means all data, reports, interpretations, forecasts and records containing or otherwise reflecting information and concerning the Disclosing Party and its Affiliates (as defined below) and the Properties (including their respective direct and indirect owners and advisers) which are not available to the general public and which the Disclosing Party or its respective agent or advisers will provide to you on or after the date of this Letter in connection with the Transaction in the course of your consideration of the Transaction, together with analyses, compilations, studies or other documents, whether prepared by you or your Representatives (as defined below) to the extent they contain or otherwise reflect such information, the fact that discussions or negotiations are taking place concerning the Transaction, and any of the terms, conditions or other facts with respect to the Transaction, including the status thereof. The term "**Affiliates**", in respect of the Disclosing Party, includes McDonald's Corporation (indirect parent of the Disclosing Party) ("**Parent**"), all direct or indirect subsidiaries, affiliates and joint ventures, all franchisees in and suppliers to the Parent's system, and all officers, directors, employees, agents, consultants, independent contractors, representatives or others acting on behalf of the Disclosing Party, the Parent, such direct or indirect subsidiaries, affiliates, joint ventures, franchisees and/or suppliers.

In consideration of the Disclosing Party providing you with Confidential Information, you agree that all Confidential Information will be held and treated by you and ~~you will direct~~ your affiliates, and your and your affiliates' respective directors, officers, employees, agents and advisers (including, without limitation, attorneys, accountants, consultants, valuers, banks and financial advisers) and potential sources of capital (to the extent such parties actually receive Confidential Information from you or at your direction, collectively, "Representatives") ~~to hold and treat~~, in confidence and will not, except as hereinafter provided, without our prior written consent, be disclosed by you or your Representatives in any manner whatsoever, in whole or in part, and will not be used by you or your Representatives other than in connection with your consideration of the Transaction. You also agree to disclose Confidential Information only to your Representatives on a need-to-know basis for purposes of your consideration of the Transaction. You further undertake to ~~direct~~procure all of your Representatives who are provided with any Confidential Information to comply with all confidentiality and use terms and conditions of this Letter; provided, however, that you will not be responsible for any breach of this Letter by (a) any of your Representatives who is not a general or limited partner, member, director, officer or employee or stockholder or you and who has agreed in writing to be bound by the confidentiality and use terms of this Letter ~~or in favour of the Disclosing Party or~~ (b) who has entered in a separate confidentiality agreement with the Disclosing Party in respect of the Transaction.

Notwithstanding the foregoing, the following will not constitute "Confidential Information" hereunder:

- (a) information which was already in your or your Representatives' possession prior to our disclosure of the same to you;
- (b) information which was obtained by you or your Representatives from a third person who is not, to your or your Representatives' knowledge, as the case may be, prohibited from transmitting the information to you by a contractual, legal or fiduciary obligation owed to the Disclosing Party and/or its Affiliates;
- (c) information which is or becomes publicly available other than by a breach of this Letter by you and/or your Representatives; and
- (d) information which is independently developed by you or your Representatives without making reference to the Confidential Information.

Upon our written request, you will, and you will direct your Representatives to promptly, as elected by you, return to us all the Confidential Information and all copies thereof or confirm to us in writing (email being sufficient) that, save as required by law or regulation or court order or internal document retention policies or professional standards, it has been destroyed and you and your Representatives are entitled to retain any computer records and files containing the Confidential Information and the portion of the Confidential Information consisting of analyses, compilations, studies or other documents prepared by you, or your Representatives with reference to the Confidential Information which have been created pursuant to the automatic electronic archiving and back up procedure.

All communications regarding the Disclosing Party and/or the Properties, including requests for additional information, requests for property tours or management meetings, and discussions or questions related to the Confidential Information, the Disclosing Party and/or the Properties shall be submitted exclusively to:

Jones Lang LaSalle Limited

Address: 7/F One Taikoo Place, 979 King's Road, Quarry Bay, Hong Kong
Telephone: +852 2846 5820
Fax: +852 2530 5017

Email: eunice.tang@jll.com

In the event that you or your Representatives are requested or required to disclose any Confidential Information by law, regulation or any regulatory or government authority or court order to or other legal process which you or your Representatives (as the case may be) are subject, you or your Representatives (as the case may be) will to the extent ~~reasonably practicable and~~ permitted by law, the relevant regulation or court order to provide us with prompt notice (email being sufficient) of such request or requirement so that we may seek an appropriate protective order or waive compliance with the provisions of this Letter. Notwithstanding the foregoing, notice to the Disclosing Party shall not be required where disclosure is made (i) in response to a request by a regulatory or self-regulatory authority and such request cannot be disclosed to the Disclosing Party due to prohibition by law, the relevant regulation or court order or (ii) in connection with a routine regulatory audit or examination by a bank examiner or auditor not specifying the Disclosing Party or the Transaction. If a protective order or the receipt of a waiver is not obtained, and you or your Representatives (as the case may be) are, in the written opinion of your counsel, compelled to disclose Confidential Information, you or your Representatives (as the case may be) may disclose that portion of the Confidential Information which your counsel advises that you or your Representatives (as the case may be) are compelled to disclose. To the extent ~~reasonably practicable and~~ permitted by law, the relevant regulation or court order or other legal process, you and your Representatives agree to reasonably cooperate with us in any action brought by us at our sole cost and expense to obtain an appropriate protective order or other reliable assurance that confidential treatment will be accorded to the Confidential Information.

To the extent ~~reasonably practicable and~~ permitted by law, the relevant regulation or court order or other legal process, you and your Representative further agree to in advance consult with us regarding the timing, scope and manner of the disclosure of the Confidential Information.

You understand that we have not and do not make any representations or warranties, express or implied, regarding the accuracy or completeness of the Confidential Information (save as may subsequently be agreed in any definitive agreement executed and delivered by you and us), and that we have no liability to you or any of your Representatives for damages, claims, or losses resulting from the use of the Confidential Information.

Other than as set out in any other agreement in writing between you and us, neither party hereto shall be under any obligation to the other not expressly contained herein, including any obligation to proceed with a transaction, until definitive transaction documentation has been executed and delivered by you and us. No failure or delay by us in exercising, nor any single or partial exercise of, any right, power or privilege hereunder shall operate as a waiver thereof or preclude any other or future exercise thereof.

You agree that we may suffer irreparable damage and may have no adequate remedy at law if you violate any term of this Letter. In such event, you agree that we may have the right, in addition to any other remedy available, to seek injunctive relief without proof of specific damages. You also agree to indemnify and hold us against and to pay to us on demand any loss or expense incurred by us by reason of or arising out of breach by you or by any of your Representatives of the obligations contained herein, including, without limitation, any costs (including legal costs on a solicitor and own client basis), expenses or other liabilities incurred by us in connection with the enforcement of any of our rights or your obligations hereunder or pursuant hereto.

All the obligations and liabilities of the parties under this Letter shall lapse on the earlier of (a) one year from the date of this Letter or (b) the date upon which the parties enter into a definitive agreement in respect of the Transaction.

Unless expressly provided to the contrary in this Letter, a person who is not a party to this Letter has no right under the Contracts (Rights of Third Parties) Ordinance to enforce or to enjoy the benefits of any of its terms. Notwithstanding any term of this Letter, the consent of any person who is not a party to this Letter is not required to rescind or vary this Letter at any time.

This Letter will be governed by and construed in accordance with the internal laws of Hong Kong Special Administrative Region of the People's Republic of China ("Hong Kong") and may only be amended in writing by the party to be charged. The parties hereto submit to the non-exclusive jurisdiction of the courts of Hong Kong.

The Disclosing Party will have no recourse against any of your or your affiliates' former, current or future general or limited partners, members, officers, employees or stockholders in connection with this Letter or otherwise arising out of a possible Transaction except as may be expressly set forth in the final, legally binding definitive agreements.

The Disclosing Party acknowledges that you are in the investment business and that you and your affiliates may now or in the future evaluate, invest in (directly or indirectly, including providing financing to) or do business with competitors or potential competitors of the Disclosing Party, and that neither the execution of this Letter nor receipt of the Confidential Information is intended to or shall restrict or preclude such activities.

Except as required by applicable law, regulation ~~or~~ legal process, or internal procedures of the Disclosing Party itself or between the Disclosing Party and its Affiliates in relation to the Transaction, without your prior written consent, the Disclosing Party and its employees and advisors shall not identify you and your affiliates by name or by identifiable description in connection with the Transaction, entering into this Letter or being involved in discussions or negotiations concerning the Transaction to any person other than an employee or advisor of the Disclosing Party who reasonably requires access to such information.

Notwithstanding anything to the contrary provided elsewhere herein, none of the provisions of this Letter shall in any way limit the activities of Blackstone Inc. and its affiliates in their businesses distinct from the real estate business of Blackstone Inc., provided that the Confidential Information is not made available to employees, officers or directors of Blackstone Inc. and its affiliates who are not involved in the real estate business of Blackstone Inc. Should the Confidential Information be made available to an employee, officer or director of Blackstone Inc. and its affiliates who is not involved in the real estate business of Blackstone Inc., such employee, officer or director shall be bound by this Letter in accordance with its terms. Should the Confidential Information be made available to an individual at an affiliate of Blackstone Inc. who is not involved in the real estate business of Blackstone Inc. solely for the purpose of assessing and resolving conflicts and or determining the proper allocation of investment opportunities then such individual shall be bound by the confidentiality and use provisions of this Letter, provided, however, that receipt of Confidential Information by such individual shall not be imputed to the business unit of such individual unless such individual conveys, shares or communicates Confidential Information to any person at such business unit or directs any person at such business unit to take any actions that would contravene the confidentiality and use provisions. In addition, none of the provisions of this Letter shall in any way apply to any portfolio company of an affiliate of Blackstone Inc., provided, however, that should the Confidential Information be made available to an employee, officer or director of any portfolio company of an affiliate of Blackstone Inc., such employee, officer or director shall be bound by this Letter in accordance with its terms. None of the provisions of this Letter shall in any way limit: (i) the trading of any commercial mortgage backed securities or other similar instruments ("CMBS") by you or your affiliates in the ordinary course of your or their business (including, without limitation, any CMBS which includes any loan or other debt instrument issued or held by the Disclosing Party or any of its Affiliates or subsidiaries or any debt instrument collateralized by one or more of the properties held by the Disclosing Party or any of its

DLA Piper [DLA Piper1] August 1, 2025 05:22 PM

Note to MRPL: we have seen this carve-out language being a standard inclusion from Blackstone in other transaction. This, together with their above language of us being unable to have recourse against their non-director/officer/employee, effectively nullifies the Disclosing Party's ability to claim for loss from either Blackstone or their relevant Representative. We have made drafting changes above to make sure we can at least make claims against the Blackstone company entity if their representatives (within the categories mentioned here) are in breach, or in other cases like agents / financiers who provided the same confidentiality undertaking to the disclosing party, we have direct recourse against that representative.

DLA Piper [DLA Piper2] August 1, 2025 05:23 PM

Note to MRPL: this is fine with us.

DLA Piper [DLA Piper3] August 1, 2025 05:32 PM

Note to MRPL: this is a quasi-confidentiality clause reversely imposed on MRPL.

We do not think MRPL will act in breach.

But any Affiliates and consultants of MRPL should be reminded that Blackstone cannot be identified publicly as participating in the transaction.

Affiliates or subsidiaries (“**CMBS Properties**”)), (ii) the purchase, sale or origination by you or your affiliates of (A) any security or debt instrument issued or held by the Disclosing Party or any of its Affiliates or subsidiaries, (B) any debt instrument held by a third party which is collateralized by one or more of the CMBS Properties, or (C) any third party’s interest in one or more of the CMBS Properties, (iii) the trading of any debt instrument or equity investment that is currently owned by you or your affiliates or (iv) the trading of any debt instrument or equity investment for which you or your affiliate was/is the issuer; provided, that you agree to comply with all applicable securities laws in conducting such transactions.

If the foregoing reflects your agreement, kindly sign and return the duplicate copy of this letter to us.

Yours faithfully,

MCD Real Properties Limited

DLA Piper [DLA Piper4] August 1,
2025 05:34 PM

Note to MRPL: similarly we have seen these carve-outs and qualification language from Blackstone. We are fine with it as they are not diminishing your rights under this NDA. The intention is to allow BX to continue with their other businesses without the limitation of this NDA.

Agreed and Accepted as of
the First Date Written
Above:

Name of Intending Tenderer:
For and on behalf The Blackstone Group (HK) Limited

By: _____

Name: _____

Title: _____

Schedule

<u>The Properties</u>	
(I)	(1) Shops Nos.1 and 2 on the Ground Floor of Star House, No.3 Salisbury Road, Kowloon, Hong Kong; and (2) Shop A on the Basement and Staircase No.13 on the Ground Floor of Star House, No.3 Salisbury Road, Kowloon, Hong Kong
(II)	(i) Shop No.7 (including the Cockloft therein) on the Ground Floor, (ii) Shop No.8 (including the Cockloft therein) on the Ground Floor, (iii) Shop No.9 (including the Cockloft therein) on the Ground Floor, (iv) Shop No.10 (including the Cockloft therein) on the Ground Floor, (v) First Floor, (vi) Shop No.3 on the Ground Floor, (vii) Flat No.1 (including the Flat-roof appurtenant thereto) on the Second Floor, (viii) Flat Roof No.6 on the Second Floor and (ix) Flat Roof No.8B on the Second Floor of Cheuk Ming Building, Nos.10, 12, 14, 16, 18, 20 and 22 Tsuen Wan Market Street and Nos.22, 24 and 26 Chuen Lung Street, Tsuen Wan, New Territories, Hong Kong <u>p Kong</u>
(III)	The whole of First Floor and the Canopy appurtenant thereto (including the Staircase and Landing leading from the First Floor to the Ground Floor), the whole of Second Floor and Flat Roofs "A", "B" and "C" of Fourth Floor, McDonald's Building, 46-54 Yee Wo Street, Hong Kong)
(IV)	(i) The Remaining Part of Part A of Portion of Shop No.4 on the Ground Floor, (ii) Portion A of Shop No.1 on the Ground Floor and (iii) The Remaining Part of Basement, Good Hope Building, Nos.612-618 Nathan Road, Nos.5-7 and 13-19 Sai Yeung Choi Street South and Nos.40G- 40I3 - <u>40H</u> Shantung Street, Kowloon, Hong Kong
(V)	Shop No. 5 on the Ground Floor, the First Floor and the Second Floor of Yuen Long Trade Centre, 99-109 Castle Peak Road, Yuen Long Section, Yuen Long, New Territories, Hong Kong
(VI)	Shop C and Shop D on Ground Floor, Unit B on 1st Floor together with the Flat Roof appurtenant thereto, the Whole of Flat Roof on 2nd Floor and Portion of Flat Roof (designated as Flat Roof A) on 3rd Floor of Man Kwong Court, Nos.12F-12G Smithfield, Hong Kong
(VII)	Shops Nos.1 and 2 on the Ground Floor and Office No.J1 on 1st Floor of Tai Fong Building, Cosmopolitan Estate, Kowloon, Hong Kong
(VIII)	Shop No.1 on the Ground Floor of Manning Theatre Building (also known as No.68 Yuk Wah Street, Ground Floor), Nos. 68-72 Yuk Wah Street and Nos. 51-55 & 59 Yuk Wah Crescent, Kowloon, Hong Kong